

		addition, it is not necessary to seek judicial notice of documents in the court file for this case. Plaintiffs' Evidentiary Objections (ROA 2994) were not material to the disposition of the motion. Plaintiffs Marc Youssef Lazo, Jacques Hattouni and H&L Holdings, LLC to give notice.
4	Goodman, et al. v. Optima Tax Relief LLC 2025-01503347	<u>Defendant Optima Tax Relief LLC's Demurrer to First Amended Complaint and Motion to Strike Portions of First Amended Complaint</u> Defendant Optima Tax Relief LLC demurs to the class action allegations in plaintiffs' first amended complaint and moves to strike the same portions of the first amended complaint. Defendant argues the class definition in paragraph 88 of the first amended complaint defines an impermissible "fail-safe" class that is not ascertainable. In their opposition, plaintiffs seek leave to file a second amended complaint to revise the class definition in paragraph 88. Plaintiffs' request for leave to file a second amended complaint to revise the class definition in paragraph 88 is granted, defendant's demurrer based on paragraph 88 is overruled as moot, and defendant's motion to strike based on paragraph 88 is denied as moot. If defendant contends plaintiff's revision of paragraph 88 is inadequate, case law states the "preferable practice" is to allow leave to amend and the parties then may test the legal sufficiency of the pleading through demurrer or other appropriate motion. See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 ("the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"); <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 ("the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings"). Defendant's other arguments in its demurrer—i.e., that plaintiffs cannot establish predominance of common questions and cannot establish typicality—are not suitable for resolution on demurrer here, as the court cannot conclude as a matter of law on this record that, assuming the truth of the factual allegations in the first amended complaint, there is no reasonable possibility that the requirements for class certification will be satisfied. Defendant's demurrer based on predominance and typicality is overruled. Defendant's Reply Request for Judicial Notice (ROA 91) is denied as the documents are not material to the disposition of the motions. Plaintiffs are ordered to give notice and to file and serve by May 28, 2026 a second amended complaint consistent with this ruling. <u>Status Conference in Case No. 2025-01503347</u> The court has reviewed the parties' joint status conference statement filed May 14, 2026 (ROA 85), and based thereon

		continues the May 21, 2026 status conference to <u>September 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
5	Kirshner v. Optima Tax Relief, LLC 2025-01523978	<u>Status Conference in Case No. 2025-01523978</u> The court has reviewed the parties' joint status conference statement filed May 15, 2026 (ROA 39), and based thereon continues the May 21, 2026 status conference to <u>September 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
6	Greenough v. SoCal Investment Group, Inc. 2025-01488601	<u>Defendant SoCal Investment Group, Inc.'s Motion to Defer Class and PAGA Discovery</u> Defendant SoCal Investment Group, Inc. moves pursuant to Civil Procedure Code section 2019.020(b) for an order "deferring discovery on the merits of plaintiff's . . . class claims and . . . PAGA claim until after a class certification motion is heard and decided." Notice of Motion (ROA 58) at 2:6-8. For the following reasons, defendant's motion is denied. Civil Procedure Code section 2019.020 states: (a) Except as otherwise provided by a rule of the Judicial Council, a local court rule, or a local uniform written policy, the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party. (b) Notwithstanding subdivision (a), on motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice. Civ. Proc. Code § 2019.020. "California law has long made clear that to require a party to supply proof of any claims or defenses as a condition of discovery in support of those claims or defenses is to place the cart before the horse." <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 551. Defendant argues discovery should be deferred until after class certification because plaintiff allegedly cannot satisfy the typicality requirement for class certification and allegedly lacks PAGA standing because "plaintiff personally has not suffered any injury." Brief (ROA 52) at 1:9-13. Defendant's contention that "plaintiff kept her own time records, was herself responsible for making sure she took all required rest periods and meal periods, and